



Making a Claim Against an Estate

An Informational Guide to a North Dakota State Civil Court Process

The North Dakota Legal Self Help Center provides resources to people who represent themselves in civil matters in North Dakota state district courts. The information provided in this informational guide **isn't** intended for legal advice but only as a general guide to a civil court process.

If you decide to represent yourself, you need to do additional research to prepare.

If you're unsure how to proceed, don't know if this informational guide suits your needs, or need legal advice or legal representation, consult a lawyer licensed to practice in North Dakota. For more information about finding a lawyer, go to ndcourts.gov/legal-self-help/finding-a-lawyer.

When you represent yourself, you're expected to know and follow the law, including:

- State or federal laws that apply to your case;
- Case law, also called court opinions, that applies to your case; and
- Court rules that apply to your case, which may include:
 - North Dakota Rules of Civil Procedure;
 - North Dakota Rules of Court;
 - North Dakota Rules of Evidence;
 - North Dakota Administrative Rules and Orders;
 - Any local court rules.

Links to laws, case law, and court rules are available at ndcourts.gov.

A glossary with definitions of legal terms is available at ndcourts.gov/legal-self-help/glossary.

When you represent yourself, you're held to the same requirements and responsibilities as a lawyer, even if you don't understand the rules or procedures.

This information isn't a complete statement of the law. This covers basic information about the process of making a claim against an estate in a North Dakota state district court probate case. The Center isn't responsible for any consequences that may result from the information provided. The information can't replace the advice of a lawyer licensed in North Dakota.

Use at your own risk.

This Informational Guide Applies to the Following Situation:

- 1. You have a claim against the estate of a deceased individual; and**
- 2. A probate case for the estate of the deceased individual is filed in a North Dakota state district court.**

If this doesn't apply to your situation, [consult a lawyer](#).

Information About Claims Against Estates in North Dakota

How Do I Find Out if a Probate Case is Filed?

To find out if a probate case for a deceased individual is filed in a North Dakota state district court, search public court records at ndcourts.gov. Click on "Search Records and Pay Fines."

- Read the information, then click "Click Here to Proceed."
- Select a location from the pull down menu.
 - Select the State of North Dakota, or select an individual county.
- Click the "Civil, Family & Probate Case Records" link.
- In the "Last Name" field:
 - Enter **at least** the first three letters of the deceased individual's last name, followed by an asterisk (*).
 - For example, if the last name is Smith, enter **at least** smi*.
- In the "First Name" field:
 - Enter **at least** the first letter of the deceased individual's first name, followed by an asterisk (*).
 - For example, if the first name is Jane, enter **at least** j*.
- In the "Case Types" box:
 - Hold down the Ctrl key on your keyboard and select:
 - "Domiciliary Proceeding"
 - "Heirship"
 - "Other Probate"
 - "Probate Administration (Formal)"
 - "Probate Administration (Informal)"
 - "Probate of Will (Formal)"
 - "Probate of Will (Informal)"
- Click the "Search" box.
- The screen will list publically accessible court cases based on your search.

Case numbers are listed on the left-hand side of the page.

What if a Probate Case Isn't Filed?

If a probate case for the deceased individual hasn't been filed in a North Dakota state district court, [consult a lawyer](#) licensed to practice in North Dakota. Resources for finding a lawyer are located at the end of this Informational Guide.

What is a Claim Against an Estate?

When a deceased individual owes debts or obligations before death, **and** when the estate of the deceased individual owes debts or obligations after death, creditors make claims against the estate for payment.

Is There a Deadline for Creditors to Make Claims Against an Estate?

Yes, when an estate is probated in a North Dakota state district court, creditors have a deadline to make a formal claim for payment of the debt.

If the debt or obligation occurred **before death**, the deadline to make a claim is:

- Three months after the date the Notice to Creditors was first published **if** the personal representative chose to publish the Notice to Creditors **and** the notice of publication met the requirements of [North Dakota Century Code Section 30.1-19-01](#).
- Three years after the date of death **if** the personal representative chose **not** to publish the Notice to Creditors.

If the debt or obligation occurred **after death**, the deadline to make a claim is:

- Four months after performance of the contract by the personal representative, **if** the claim is based on a contract with the personal representative.
- For any claims, three months after the claim arises.

(In North Dakota state district court probate cases, a personal representative is appointed by the district court to handle the estate.)

Does the North Dakota Legal Self Help Center Have Forms to Make a Claim Against an Estate?

No, the ND Legal Self Help Center doesn't have a packet of forms for making a claim against an estate. If you decide to represent yourself, you create and prepare your own legal documents.

However, a formatting example of a form to make a claim against an estate probated in a North Dakota state district court is included at the end of this Informational Guide. It may be of interest as a formatting example.

Is There Help Available for Creating Legal Documents?

[Consult a lawyer](#) licensed to practice in North Dakota.

Ask the lawyer about Limited Legal Representation. Lawyers licensed to practice in North Dakota may agree to help you with part of your civil action, such as preparing legal documents, while you handle the rest of your civil action. You and the lawyer must agree in writing to Limited Legal Representation.

North Dakota Laws & Rules Related to Claims Against Estates

[Title 30.1 of the North Dakota Century Code](#) contains laws governing probate in North Dakota.

[Chapter 30.1-19 of the North Dakota Century Code](#) contains requirements for creditor claims against estates. **Review the entire Chapter.**

[North Dakota Rules of Civil Procedure](#) apply to civil matters in North Dakota state district courts.

[North Dakota Rules of Court](#) apply to civil matters in North Dakota state district courts.

[North Dakota Rules of Evidence](#) apply to civil matters in North Dakota state district courts.

[North Dakota case law](#) is useful for interpreting what the law means for your individual circumstances. When the decision of a case is appealed from a North Dakota state district court to the North Dakota Supreme Court, the Supreme Court writes their opinion to explain how and why they interpreted the laws or rules to decide the appeal the way they did. The opinions are case law and followed by North Dakota courts deciding later cases with similar facts and issues.

Laws constantly change through legislation, administrative rulings and case law (court decisions). To determine how a law applies to your situation, review the applicable law or laws, administrative rulings and case law (court decisions).

Only a lawyer licensed to practice in North Dakota who has agreed to represent you can give you legal advice. Legal advice includes interpreting how the laws and rules apply to your situation.

The Process of Making a Claim Against an Estate in a North Dakota State District Court Probate Case

Step One: Review N.D.C.C. Chapter 30.1-19; Make Decisions

Review [North Dakota Century Code Chapter 30.1-19](#) carefully. Chapter 30.1-19 contains requirements for making a claim against an estate. As a self-represented individual, you're responsible for following all of the requirements.

Based on your review of Chapter 30.1-19, decide if you meet the requirements to make a claim against an estate.

Step Two: Create Your Legal Document

If you decide you meet the requirements to make a claim against an estate, you create your written statement of your claim.

Create the Following Legal Document:

- **Claim Against Estate:**
 - Must include:
 - The reason for your claim;
 - Your name and address, as the claimant; and
 - The amount you claim you're owed by the estate.

A formatting example of a form to make a written statement of a claim against an estate probated in a North Dakota state district court is included at the end of this Informational Guide. It may be of interest as a formatting example.

Step Three: Present Your Claim Against the Estate (*Two Options*)

After you create your Claim Against Estate document, [North Dakota Century Code Section 30.1-19-04](#) allows two options to present your claim against the estate.

Option One: Deliver or Mail to the Personal Representative

You may deliver or mail your Claim Against Estate document to the personal representative and any lawyer of record for the estate.

- The name of the personal representative and any lawyer representing the personal representative for the estate are listed in the public court records for the probate case.

You may wish to have proof that you delivered or mailed your Claim Against Estate legal document to the personal representative and any lawyer of record.

In court cases, this is called **proof of service**. See Step Four: Proof of Service of Your Claim Against the Estate for more information.

Option Two: File with the Clerk of District Court

You may file your Claim Against Estate document with the Clerk of District Court in the probate case.

- The name of the County is listed in the public court records for the probate case.
- Contact information for Clerks of District Court by North Dakota county is available at ndcourts.gov/court-locations.

A copy of all documents filed with the Clerk of District Court **must** also be served on the personal representative. If the personal representative is represented by an lawyer, serve the lawyer instead.

You need to prove that you served a copy of your Claim Against Estate legal document. This is called **proof of service**. See Step Four: Proof of Service of Your Claim Against the Estate for more information.

Step Four: Proof of Service of Your Claim Against the Estate

Service is providing copies of your Claim Against Estate document to the people you're required to serve. Proof of service is filed with the District Court. A Declaration of Service gives the District Court proof of service.

Service by Mail:

You may arrange for service by mail. A fillable Declaration of Service by Mail form is available at the end of this Informational Guide.

Put the copy of your Claim Against Estate document in an envelope. Address the envelope with the person's last known address. List your address as the return address on the envelope.

A person who is at least 18 years old mails the envelope by United States First Class mail. First Class postage must be prepaid. Service by mail is complete upon mailing.

The person who mailed the envelope completes the Declaration of Service by Mail. If the person took the envelope to a United States Post Office, the Post Office employee **doesn't** complete the Declaration of Service by Mail.

Service by Personal Delivery:

You may arrange for service by hand delivery. A fillable Declaration of Service by Personal Delivery form is available at the end of this Informational Guide.

Give the copy of your Claim Against Estate document to a person who is at least 18 years old **and not** a party or interested person in the probate case. That person hand delivers the copy to the person intended to be served.

The person who hand delivered the copy to the person intended to be served completes the Declaration of Service by Personal Delivery.

Service by personal delivery is complete upon handing the copy of your Claim Against Estate document to the person intended to be served.

If You Chose Option One in Step Three (see page 5):

Keep the completed Declaration(s) of service for your records. If you need to provide proof that you delivered or mailed your Claim Against Estate document to the personal representative and any lawyer of record, you'll have your Declaration(s) of service available.

If you Chose Option Two in Step Three (see page 6):

Make a copy of each the completed Declaration(s) of service for your records. File the original(s) with the Clerk of District Court when you file your Claim Against Estate document.

Step Five: Payment of Claims

Review [North Dakota Century Code Section 30.1-19-06](#) for allowing or disallowing a claim.

Review [North Dakota Century Code Section 30.1-19-07](#) for payment of claims.

If there aren't enough assets in an estate to pay claims, [North Dakota Century Code Section 30.1-19-05](#) requires the personal representative to pay claims in the following order:

1. Costs and expenses of administration of the estate.
2. Reasonable funeral expenses.
3. Debts and taxes with preference under federal law.
4. Reasonable and necessary medical and hospital expenses of the last illness of the deceased individual, including compensation of persons attending the deceased individual.
5. The deceased individual's child support obligations due and unpaid before death.
6. Debts and taxes with preference under other laws of North Dakota.
7. All other claims.

Lawyer Resources and Limited Legal Representation

You're not required to hire a lawyer to bring a civil case in North Dakota State District Court. If you decide to represent yourself, you must follow all of the rules, laws and procedures a lawyer is required to follow.

Go to ndcourts.gov/legal-self-help/finding-a-lawyer for more information about how to find a lawyer.

Lawyer Resources

If you decide to find a lawyer to represent you, you may find the following options of interest.

- **Legal Services of North Dakota** is a non-profit organization, providing free legal assistance to North Dakota residents in a variety of matters based on income. Legal Services of North Dakota can also determine whether an applicant meets the income requirements for the Volunteer Lawyers program that offers low-cost legal assistance based on income. The phone number is (800) 634-5263 and the website is lsnd.org.
- The **State Bar Association of North Dakota** provides a lawyer referral service to match paying clients in need of legal services with lawyers. The phone number is (866) 450-9579 and the website is sband.org. The cost is \$30.00 for a 30 minute consultation with a lawyer.
- **Dakota Plains Legal Services** is a non-profit legal services organization that provides free legal assistance to low-income individuals, older Americans and veterans. Dakota Plains Legal Services (DPLS) has eight offices and serves communities across South Dakota and North Dakota, including nine tribal nations. DPLS is committed to increasing access to justice with quality legal assistance. Contact information is available on the DPLS webpage of dpls.org.
- For a list of all lawyers who are licensed to practice in North Dakota, go to the North Dakota Supreme Court website at ndcourts.gov/Lawyers. You can narrow your search by name or location.

Limited Legal Representation

Lawyers licensed to practice in North Dakota may provide Limited Legal Representation in civil cases. Limited Legal Representation (sometimes called "unbundling") is a way a lawyer can help you with part of your case while you do the rest of your case. You pay for the part of the case the lawyer handled.

For example:

- You may want a lawyer to give you an expert opinion about your options, or your legal rights and responsibilities;
- You can consult with a lawyer to prepare or review your legal documents, but attend hearings yourself;
- You can represent yourself through the whole case, and periodically consult with a lawyer who can coach you on the law, procedures and strategy;
- You can do the preparation yourself and hire a lawyer just to make court appearances for you.

You and the lawyer must agree in writing to Limited Legal Representation.

North Dakota Free Legal Answers

This civil legal program is a partnership of the American Bar Association and the State Bar Association of North Dakota.

The purpose of the program is to provide free answers to **specific** civil legal question to low-moderate income North Dakotans who submit their questions online. Anonymous volunteer lawyers answer your question, but can't represent you.

Go to nd.freelegalanswers.org or information about the program, the online application, and, if you qualify, ask your civil legal question.

This program **doesn't** provide any assistance with criminal legal questions.

WRITTEN STATEMENT OF CLAIM AGAINST ESTATE DELIVERED OR MAILED TO PERSONAL REPRESENTATIVE OR FILED WITH COURT. (N.D.C.C. . 30.1-19-04).

Name, Address, and Telephone No. of Attorney

Space below for use of District Court only

Probate No. _____

Attorney _____ for:

IN THE DISTRICT COURT OF _____ COUNTY, STATE OF NORTH DAKOTA

In the Matter of the Estate of _____, Deceased.

CLAIM AGAINST ESTATE

_____, creditor of the estate of
_____, deceased, hereby states that said estate is
indebted to said creditor in the amount of \$ _____ for:

Dated this _____ day of _____.

Claimant

Address

State Of North Dakota

In District Court

County Of _____

_____ Judicial District

In The Matter Of Estate Of

_____, Deceased

Case No. _____

Declaration Of Service By Mail

*(May serve multiple persons **only if** envelopes are mailed the same day.)*

The person serving court documents by mail states:

1. My name is _____ *(name of person who mailed documents)*. I am at least 18 years of age.

2. **List of Court Documents Served** *(List the name of the document served and checkmark (✓) the box):*

☒ Claim Against Estate

☐ _____

☐ _____

3. **Service by Mail:**

I served a true and correct copy of each of the court documents listed in Paragraph 2 by mailing them, enclosed in an envelope, by *(choose one)* ☐ Certified Mail *(OR)* ☐ First-Class mail, postage prepaid, and by depositing them in the United States Mail, directed to each person listed in Paragraph 5.

4. **Date of Service by Mail:**

Date Court Documents Were Served by Mail: _____

5. Person or Persons Served by Mail:

1. Name of Person Served: _____
Mailing Address: _____
City, State, Zip Code: _____
2. Name of Person Served: _____
Mailing Address: _____
City, State, Zip Code: _____
3. Name of Person Served: _____
Mailing Address: _____
City, State, Zip Code: _____
4. Name of Person Served: _____
Mailing Address: _____
City, State, Zip Code: _____

6. I declare, under penalty of perjury under the law of North Dakota, that everything I stated in this Declaration of Service by Mail is true and correct.

Signed on _____ (date) in _____ (city),
_____ County, _____ (state), _____ (country).

Signature

Printed Name

Address

City, State, Zip Code

Telephone Number

Email Address

State Of North Dakota

In District Court

County Of _____

_____ Judicial District

In The Matter Of The Estate Of

_____, Deceased

Case No. _____

Declaration Of Service By Personal Delivery

(A separate Declaration is required for each person served.)

The person personally serving court documents states:

1. My name is _____ *(name of person who personally served documents)*. I am at least 18 years of age. **I am not a party or interested in the above named matter.**

2. **List of Court Documents Served** *(List the name of the document served and checkmark (✓) the box):*

☒ Claim Against Estate

☐ _____

☐ _____

3. **Personal Service** *(Paragraph 3 continues on next page):*

I served a true and correct copy of each of the court documents listed in Paragraph 2 to

_____ *(name of person served)* by

(choose one):

☐ Giving the court documents directly to them.

☐ Leaving the court documents with: _____ *(name)*,
a person of suitable age and discretion who lives at the same address.

I know the person I served is the person intended to be served because (*explain how you identified the person*): _____

4. Date, Time, and Address of Personal Service:

Date: _____ Time: _____ ☐ a.m. (*or*) ☐ p.m.

Address:

(*street address*) (city) (zip code)

5. I declare, under penalty of perjury under the law of North Dakota, that everything I stated in this Declaration of Service by Personal Delivery is true and correct.

Signed on _____ (*date*) in _____ (*city*),
_____ County, _____ (*state*), _____ (*country*).

Signature

Printed Name

Address

City, State, Zip Code

Telephone Number

Email Address